
A VISION FOR SUSTAINABLE PEACE IN SRI LANKA

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1. Preamble

Sri Lanka was long famous for its rich social diversity and the harmonious co-existence of its various communities. Since independence, however, there has been a failure to define and realize an inclusive national vision from the perspective of this distinctive heritage. Instead, divisive politics and policies have fostered deep social, cultural, political and economic schisms and engendered violent armed conflict.

The struggle in the north (with primary focus on ethno-linguistic difference) and the uprising in the south (with primary focus on class disparity) reflect an inadequate post-colonial national vision and strategy. As a result political discrimination in governance, a lack of equitable development policies, and failure to preserve and respect local and cultural knowledge have become endemic.

Competitive ethnic politics became institutionalized in post-colonial Sri Lanka. Democracy came to represent the “tyranny of the majority,” while a political culture premised on the notion that “might is right” became entrenched in the various regions of the island. Politicians and others who claim to represent majority interests both in the North and the South have frequently undermined the rights of minorities. Sri Lanka no longer upholds the true sign of civilization and social democracy that consists of protecting the vulnerable; those with the least access to power; the poor and the homeless.

Anticipating peace after decades of armed conflict, we propose a renewed inclusive multicultural vision for the country based on the principles of security and dignity for all groups and persons, and respect for cultural diversity. Our attempt is to address the causes of the conflict while recognizing the deep scars that the violence of the last decades has rendered upon a multicultural society. The need of the hour is for power-sharing to promote trust building and co-existence between diverse communities in order to forge a common future.

While the conflict in the North and East has a major ethnic component, the war is not reducible to ethnicity. Poverty, inequality, and intra-ethnic divisions played a part in fuelling the conflicts in the North and South alike. A just and sustainable peace will require understanding the complexity of Sri Lanka’s two post-colonial conflicts, as well as transcending competitive ethnic politics.

Our vision encompasses a post-conflict reconstruction and development program that recognizes the need for equity, democracy, respect for human rights and broad-based human

development in a globalized economy that has enabled growth but also generated deep regional, economic, and social inequalities. We note that profound inequalities and poverty render societies vulnerable to cycles of conflict and violence and as such development trajectories that exacerbate inequality and poverty are to be avoided.

The proposed vision for Sri Lanka is then based on and builds from an acknowledgement and appreciation of the island’s historic, largely pacific and multi-cultural past with due recognition of its more violent and divided present.

2. Recognition of Multiculturalism, Respect for All Identities, and Regional and Local Minorities

Sri Lanka is a plural and multicultural land. Multiculturalism refers to the island’s cultural diversity inclusive of three overlapping linguistic categories (speaking Sinhala, Tamil and English, and regional dialects including Veddha languages); four great world religions (Buddhism, Hinduism, Islam and Christianity, and their sects, as well as indigenous deities and spirit beliefs); more than six ethnic groups recognized in the National Census; and a number of overlapping and cross cutting castes and sub-castes.

Various ethno-national groups based on linguistic, ethnic, regional and religious elements, such as the Burghers (Dutch and Portuguese), Sinhalese (Kandyan and Low Country), Tamils (Sri Lankan and Malayala), Muslims (Moor and Malay), Parsis, Colombo Chetties, Vannialatto (Veddah) and several others have emerged as significant identities; several of these categories are composed of distinct sub-categories. Additionally, the island’s population may be sub-divided according to gender, class, and regional cultures depending on the rationale for classification.¹

Sri Lanka’s cultural diversity and complex mix of identities is not unique. Most modern nations are plural, diverse and complex. However, in the post-colonial period diversity has been perceived as a threat rather than a gift. The result has been marginalization and discrimination against smaller and less powerful groups on linguistic, ethnic, religious, caste and/or class basis, giving rise to various forms of violent political conflicts. In turn, many of these conflicts have resulted in riots, attacks, forced displacement and/or colonization of regions occupied by one community by another and the building of enclaves and territories dominated by one ethnic group or another.

Acknowledgement of Sri Lanka’s mixed cultural geography and ancient multiculturalism entails recognition that a majority group

in a region is bound to respect and protect those who are in the minority in that particular region. Every group or individual is in a minority outside his/her own territory, region, or neighborhood. A balance of power between regional majorities in different parts of the country with regard to respect and protection for the persons and property of regional minorities is a sine qua non for sustainable peace. It is also necessary to reverse the pattern of ethnic ghettoization and ethnic cleansing of regional and local minorities that occurred during the twenty years of armed conflict and the riots prior to it in the north and south of the country.

Several multi-religious sites attest to a history of peaceful coexistence among the various religious communities in the island. These sites of multi-religious significance are especially to be celebrated in the aftermath of a polarizing conflict. We propose that sites such as Siripada, Kataragama, and Madhu shrine, with their diverse traditions be recognized and celebrated as multi-religious zones of peace and amity.

3. Acknowledging the Root Causes and Legacy of Violence and Division

1. Any vision for sustainable peace in Sri Lanka must first acknowledge fully the complexity of the conflicts and their historical roots. It must start from an acknowledgement of the human and material consequences of the conflict and its multi-faceted multi-layered causes.
2. While all communities suffered during the two decades of violence, the people of the North and East of the country bore the brunt of the violence, displacement, and destruction. Forced displacement and the bitterness it generated in turn fuelled the civil war. During the two decades of civil war the predominantly Tamil speaking North and East emerged as a region with special concerns that need to be urgently addressed.
3. The consequent political reality is that, without prejudice to the integrity of Sri Lanka, the region in the North and East has acquired a special claim to a large measure of devolution. Only then will it be possible to adequately address other equally important concerns in order to build an inclusive, sustainable and peaceful future.
4. During this long conflict, a political culture premised on the manipulation of ethnic, caste, and class ties, including the practice of colonization for political ends, spread across all parts of the country, and entrenched a culture of violence. This in turn saw the emergence of para-military outfits and the settling of scores with opponents through force rather than dialogue. Targeted violence against civilian populations reduced many communities to a state of despair and

destroyed the social fabric. In many regions there are marginalised communities currently living in a state of insecurity. In this process there have been victims and perpetrators among all the major communities.

5. The 1987 July uprising of the JVP and the manner of its suppression brought about one of the most violent periods in our recent history with thousands of deaths and disappearances still unaccounted for. While the underlying causes of the two arenas of violence - the North and East, and the South - and their consequences are different, it should nevertheless be remembered that there were many similarities that speak to a common malaise. The poverty and inequality that motivated the uprisings against the state and the role of the military and other armed groups in their suppression the break down of due process and the rule of law, and the disappearances are factors in common. The still simmering consequences of the Southern violence - where sixty thousand persons are said to have lost their lives in the space of three years are still to be adequately dealt with.

6. While some women were engaged in the conflict, larger numbers of women were also targeted for degrading and violent abuse. Women-headed households have become a social reality due to conflict-related death and displacement. Consequently women have had to face loss of income, psychological trauma, the insensitivity of the state apparatus, and sexual harassment. In addition women have had to take on the dual burden of motherhood and being the primary earner. During the conflict many women also actively agitated for peace, both in the North and East, and in the South.

7. Along with women, children from all communities can be considered to be those most affected by the violence and brutalization of the conflict. Both as combatants and as bystanders, children have been victimized and deprived of their rights as instituted in the UN Convention on the Rights of the Child (CRC) to which Sri Lanka is a signatory. Over 270,000 children are internally displaced by war in Sri Lanka. Many have lost at least one parent in the fighting; a high proportion are orphans. Up to 50 per cent of displaced children have lost their birth certificates, causing problems with their schooling. One in five displaced children is malnourished.² Measures have to be taken to deal with children affected by armed conflict. Further measures should also be instituted to ensure that children's rights are safeguarded in keeping with the CRC.

8. In the current political culture, there is rampant institutionalized corruption and a lack of accountability. Politicians of all hues use violence with impunity, instrumentalize the general public in their pursuit of power,

and have contributed to the proliferation of small arms, to a decline in respect for the rule of law, and to a deterioration of faith in public institutions.

9. During and prior to the war years, in many localities, entire populations from one or more ethnic groups fled or were evicted from their ancestral lands and habitats, and are as yet unable to return and resettle there. Many fled due to riots, fear, and insecurity. Very large numbers of people were forcibly displaced as a result of riots and ethnic cleansing. In this context, commitment to preserve the country's mixed social geography is needed to ensure the return of forcibly displaced persons with security and dignity.

4. Identifying a Sound Basis for Constitutional and Institutional Design

1. A just and lasting solution to the conflict lies in recognizing the strength of ethno-national consciousness developed in the past twenty years of conflict, the need for power sharing under a federal system, and equally the need to balance the claims of diverse groups.

2. A lasting solution to the violence among ethno-religious and ethno-linguistic communities requires recognition that individual and group identities are historically complex and shifting and often politically constituted. Regional majority groups are by that very fact internally diverse, and each of the regions includes citizens of linguistic, religious and ethnic groups who constitute regional, local and non-territorial minorities.

3. Certain regions have no clear majority community, and majority/minority status often depends on the manner in which regional units are conceived.³ We must then seek to transcend the tyranny of majoritarianism – nationally, regionally and locally.

4. Power sharing should reflect the county's multi-ethnic, multi-religious and multi-lingual society and mixed cultural geography, and the center needs to better reflect this rich diversity. Therefore we need to evolve a political tradition of inter-ethnic consultation. It may help to revert to a bicameral legislature, with the second chamber re-designed as a "chamber of communities"; in the context of devolution, we would need bicameral legislatures at the regional level too, with regional chambers of communities.

5. A political culture and social acceptance of diversity and inclusiveness is needed at all levels – from the center to the periphery. Whereas there should be no politically motivated colonization, whether by the centre or by the region, no territory should be regarded as ethnically

exclusive. The concept of traditional habitations is legitimate (e.g. for cultural purposes), but there should be no concept of a mono-ethnic homeland. Every citizen of Sri Lanka should be free to live and work in any part of the island.

6. The centre currently has virtually unfettered powers to override the periphery, and to even dissolve the elected regional or local assemblies and substitute its own officers to attend to the regional or local administration. We need constitutional barriers to such abuse of central power together with the strengthening of administrative and financial autonomy of local bodies (e.g. through changes in the taxation system all over the country).

7. Capacities for local level planning should be promoted, combined with democratic principles that ensure sufficient and constructive space for people's participation.⁴

8. Since those most vulnerable to forced displacement are minorities (national and regional), the preservation of the island's multicultural social fabric and its culturally diverse communities is both the prerequisite for and guarantor of secure and sustainable peace in the island. Recognizing, respecting and balancing the rights of majorities with those of minorities in all regions, and recognizing the need to formulate mechanisms to address community aspirations in regions without a clear majority are essential for the return of displaced regional, local and non-territorial minorities and to enable a durable peace.

9. Women may be seen as constituting a minority within every cultural group. This is particularly the case where strong patriarchal traditions, norms, and cultural practices prevail. As such, special measures are required to enable inter- and intra-cultural gender equality and equity.⁵

10. The post-conflict constitution and institutional design must contend with and overcome the legacy of a bureaucratic system and political culture that resisted meaningful devolution of power to regions and self-determination for communities throughout the country. Such devolution need not be uniform – there is a good case for asymmetric devolution in the North and East, together with special institutional arrangements to meet the concerns of local minorities within multi-ethnic regions.

11. The Provincial Council model that was attempted to overcome these ills was a failure. It denied autonomy and self-determination for local communities and also contributed to the politicized construction of ethnic majority enclaves at regional and local levels through the capture of local governance institutions. Any federal model should be guided by the principles of internal self-determination and maximum devolution. There is no right to unilateral

secession, but each region, sub-region and local government area should enjoy maximum autonomy.

5. Identifying a Sound Basis for Post-conflict Reconstruction and Economic and Social Justice

i. The UN World Conference against Racism 2000 affirmed that intolerance and discrimination breed in economic and social conditions that are inequitable, and that genuine equality of opportunity for development for all individuals and groups is fundamental for sustainable peace. We recognize that in Sri Lanka inequitable socio economic conditions and short sighted political decisions had much to do with the ethnic polarization that led to the war and continue to perpetuate feelings of ethnic animosity between all communities in the North and in the South. We reaffirm, therefore, the need for an equitable social system to generate sustainable peace.

ii. Post-conflict development must also go beyond ethnic discourses and recognize the role of intra-ethnic factors, such as poverty, unemployment, landlessness, and caste discrimination in fuelling the war. The civil war in the North and East is primarily rooted in ethnicity, but there are also other social and economic conflicts everywhere in the island, mostly localized but occasionally, as in the case of the JVP uprising, acquiring a national dimension. Sometimes, such socioeconomic conflicts acquire an ethnic dimension, as has been the case in the sporadic Sinhala-Muslim or Sinhala-Malaiyaha Tamil clashes that have occurred in the south in recent years. A recognition of the diverse aspects of poverty, social exclusion, psychosocial distress and other forms of marginalization (based on socio-economic, political, cultural or ecological determinants) is necessary.

iii. While globalization in today's context appears to be inevitable, it is likely to bring many social problems in its wake. Therefore corrective mechanisms need to be instituted to address such problems. The emphasis on growth must be balanced by mechanisms to ensure fair distribution. Economic policies should focus more on the rural poor and on the plantation workers, and a consistent agricultural policy should be pursued. A social welfare system that includes free health and education must be instituted to counter the rampant economic inequality that is prevalent. Given the stark differences in lifestyles that are evident within the populace today it is essential that remedial measures are speedily instituted to avoid future conflict based on economic inequities.

iv. Poverty eradication programs should be based on a holistic perception of poverty to avoid the exclusion of certain categories, such as plantation workers. Although

their per capita income is very low, since two or more members of the household may be employed, their household income may be above the cut-off point for relief. Moreover, they are totally dependent on wages from a single source. The failure to take a holistic view of poverty has led to its persistence in the plantation sector.

v. Steps should be taken to redress concerns specific to women. It is necessary to ensure equal participation of women in planning implementation and monitoring infrastructure development programs that facilitate access to safe drinking water, sanitation, roads, transport services, energy and thereby employment, markets, services and inclusive development. There should be bilateral agreements between the Sri Lankan government and countries that employ Sri Lankan migrant workers to safeguard their rights and welfare in their workplaces. The private sector must be sensitized to the need for gender equality in socio-economic development.

vi. The elimination of gender role stereotypes in secondary and tertiary curriculum materials, and introducing materials that promote gender equality and the empowerment of women is necessary. Law reform that addresses discriminatory practices - particularly in the area of personal law - must be considered. Measures should also be in place to enhance the capacity of women candidates to secure election and to participate effectively under the proposed quota provision. Legislation to deal with domestic violence must also be introduced.

vii. Food security and preservation of bio-diversity should be priorities and development policy should be formulated and implemented based on conflict impact assessments and community participation. Access to information on development policies is a prerequisite for economic and social justice and equitable development.

viii. One consequence of the conflict has been the devastation of the environment. Since 24% of the population lives below the poverty line (as defined in the Household Income and Expenditure Survey -2002), environmental concerns have long been considered a luxury issue for the country. But such a view is shortsighted. For equitable and sustainable post-conflict development, natural resources must be creatively and equitably used, and the environment protected and held in trust for future generations. Policies have to be formulated to combat air pollution, deforestation, land degradation and unregulated exploitation of natural resources. Eco-tourism needs to be regulated in the light of analysis of its benefits and ill effects.

ix. Bio-diversity conservation should be conducted not through a species protection-based approach but through a holistic "eco-system" approach that recognizes the